



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – SFC Jason Buckner #422

Work Assignment: Troop/Division - A; Post/Unit – 41- Lafayette

INCIDENT REPORT # DPS00160289

Related Crash Reports: None ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 05/08/2024

Time: 1430

Location: Post 41 Lafayette

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Captain Shawn Prather #11 and SFC Jason Buckner #422.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 05/04/2024

Time: 0028 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

SFC Buckner was patrolling eastbound on GA 2 when he observed a silver Chevrolet SUV fail to stop for a red traffic signal as it traveled north on Happy Valley Road across GA 2.

TFC Buckner attempted to intercept the suspect with all emergency equipment activated and the suspect initiated a pursuit.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: SFC Buckner attempted to intercept the suspect with all emergency equipment activated, but the suspect failed to slow/stop and accelerated, fleeing from SFC Buckner. SFC Buckner, after realizing the suspect was not going to stop, contacted the Troop A Communications Center and advised that he was in a pursuit. The Troop A Communications Center received the information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, the Troop A Communications Center broadcasted the pursuit over the radio to all DPS Officers in the area. The Troop A

Communications Center also notified the Walker County 911 Center, and later notified the Hamilton County, Tennessee authorities.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Wilson Road northbound in Walker County. The pursuit traveled north on Wilson Road, entering the state of Tennessee. The suspect continued north until he turned right onto Workman Road, traveled across Rossville Boulevard, entering onto East 47th Steet. The suspect then turned left onto 13th Avenue, traveled a short distance, and left onto East 44th Steet. The suspect then turned right on Dodds Avenue and later turned right onto East Main Street. The pursuit continued on East Main Street until the suspect turned left onto South Seminole Dive. The pursuit terminated on South Seminole Drive. The pursuit lasted for approximately 7 minutes, 32 seconds, and traveled a total distance of approximately 7.6 miles.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: The pursuit entered the state of Tennessee but no Tennessee Law Enforcement Officers entered the pursuit.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A

If Yes, explain: During the pursuit, the suspect failed to stop for multiple red traffic signals and stop signs. The suspect also passed other motorists in no passing zones and drove on the wrong side of the roadway for extended periods as he fled in a high-speed reckless manner. The suspect's high speed reckless driving supported a felony charge of fleeing and attempting to elude.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes

☐ No

If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No

If Yes, explain: SFC Buckner stated that he experienced an adrenalin rush.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☐ N/A

If Yes, explain: The suspect was later identified and warrants issued for his arrest.

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A

Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: SFC Bucker didn't take any unnecessary risks during the pursuit and demonstrated due regard at intersections.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: Traffic conditions on the roadways traveled during the pursuit would be described as light to moderate. The pursuit occurred during nighttime conditions with clear skies, and the roadway surface was wet.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: SFC Buckner properly discontinued the pursuit once he lost visual contact with the suspect. Continuing the vehicle pursuit when the location of the suspect is unknown would have created an additional danger to the public and violated DPS Policy.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: SFC Buckner properly discontinued the pursuit once he lost visual contact with the suspect. His actions were pursuant to DPS Policy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: During the pursuit the suspect failed to stop for multiple red traffic signals and stop signs. The suspect also passed other motorists in no passing zones and drove on the wrong side of the roadway for extended periods as he fled in a high speed reckless manner. The suspect's high speed reckless driving posed a great danger to the public and all involved.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: SFC Buckner properly discontinued the pursuit once he lost visual contact with the suspect. His actions were pursuant to DPS Policy.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: SFC Buckner has been involved in numerous pursuits during his career as a State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: SFC Buckner has experience with high speed pursuits. He has received EVOC, Advanced EVOC Training and the annual Pursuit Liability Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: SFC Bucker didn't take any unnecessary risks during the pursuit and demonstrated due regard at intersections. SFC Buckner made a good decision to discontinue the pursuit once visual contact was lost.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☐

N/A

If Yes, explain: After the pursuit terminated, SFC Buckner learned an assault occurred and a vehicle had been stolen in Walker County. The complainant knew the identity of the suspect and warrants were issued for his arrest.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒

N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

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N/A

If Yes, explain:

Captain Shawn Prather #11

 #11

Reviewing Officer

6/4/2024

Date